

SENATE No. 203

The Commonwealth of Massachusetts

PRESENTED BY:

John J. Cronin

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act amending successor supplier laws.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>John J. Cronin</i>	<i>Worcester and Middlesex</i>	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>9/12/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>12/2/2025</i>

SENATE No. 203

By Mr. Cronin, a petition (accompanied by bill, Senate, No. 203) of John J. Cronin for legislation to amend successor supplier laws in regards to brand name items sold to a licensed wholesaler. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act amending successor supplier laws.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 25E of Chapter 138 of the General Laws is hereby amended by adding the
2 following new section:-

3 Section 25E 7/8. The provisions of Section 25E prohibiting a supplier from refusing to
4 sell an item having a brand name are binding on any successor supplier. A successor supplier is
5 any person who acquires, in any manner whatsoever, whether directly or indirectly, the right or
6 obligation to sell an item with brand name to a wholesaler licensed in this state. Any successor
7 supplier acquiring a right or obligation to sell to a wholesaler does so subject to the agreement
8 between the wholesaler and the supplier existing at the time of succession. All sales of a brand
9 name item made to a licensed wholesaler prior to succession will be attributed to the successor
10 supplier for the purpose of determining whether six months of regular sales exist under Section
11 25E. An agreement with a licensed wholesaler includes, without limitation, a commercial
12 relationship of a definite or indefinite duration between a wholesaler and the person selling a

13 brand item to such wholesaler, whether oral or in writing, or a relationship whereby the licensed
14 wholesaler is granted the right to offer and sell items with brand names within this state. The
15 provisions of this Section 25E are to be liberally construed to effectuate the remedial purpose of
16 the protections of Section 25E.